

CHAPTER 66

House of Commons (Redistribution of Seats) Act, 1949

ARRANGEMENT OF SECTIONS

Section.

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An Act to consolidate the enactments which make permanent provision for the redistribution of seats at parliamentary elections and the provisions of the Representation of the People Act, 1948, interpreting statutory references to constituencies.

[24th November 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

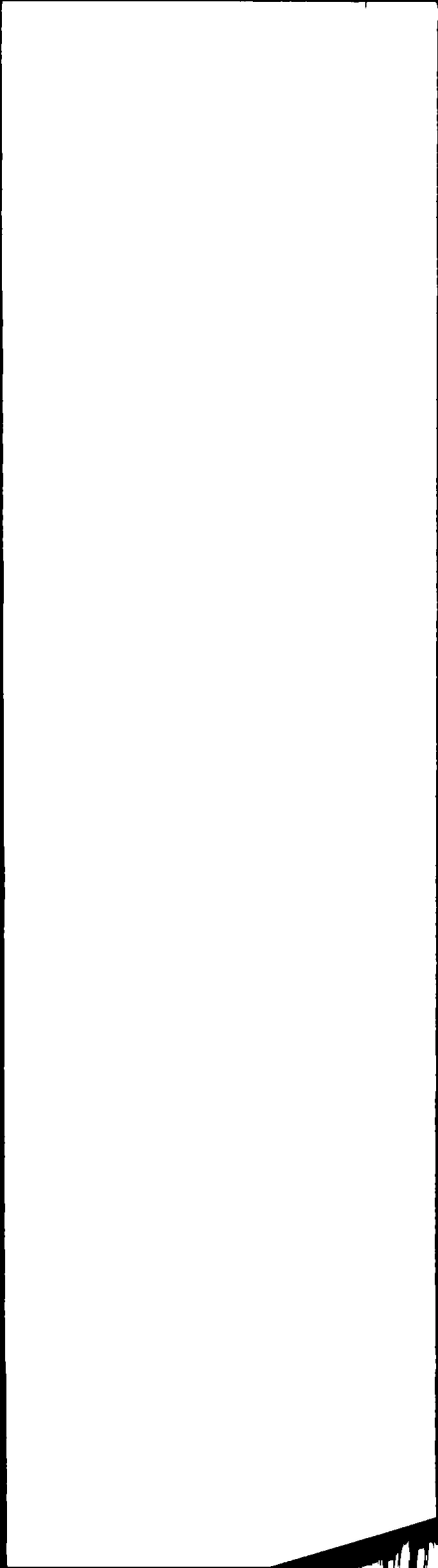
Establishment of permanent Boundary Commissions.

1.—(1) For the purpose of the continuous review of the distribution of seats at parliamentary elections, there shall be four permanent Boundary Commissions, namely a Boundary Commission for England, a Boundary Commission for Scotland, a Boundary Commission for Wales and a Boundary Commission for Northern Ireland.

(2) The Boundary Commissions shall be constituted in accordance with the provisions of Part I of the First Schedule to this Act, their assistant Commissioners and other officers shall be appointed and their expenses shall be defrayed in accordance with the provisions of Part II of that Schedule, and their procedure shall be regulated in accordance with Part III of that Schedule.

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(3) For the purposes of this Act the administrative county of Monmouth shall be taken to be part of Wales and not part of England.

2.—(1) Each Boundary Commission shall keep under review the representation in the House of Commons of the part of the United Kingdom with which they are concerned and shall, in accordance with the next following subsection, submit to the Secretary of State reports with respect to the whole of that part of the United Kingdom, either—

Periodical reports of Commissions as to redistribution.

- (a) showing the constituencies into which they recommend that it should be divided in order to give effect to the rules set out in the Second Schedule to this Act; or
- (b) stating that, in the opinion of the Commission, no alteration is required to be made in respect of that part of the United Kingdom in order to give effect to the said rules.

(2) Reports under the last foregoing subsection shall be submitted by a Commission—

- (a) in the case of the first report, not less than three or more than seven years from the date of the passing of the Representation of the People Act, 1948; and
- (b) in the case of the second or any subsequent report, not less than three or more than seven years from the date of the submission of their last report under subsection (1) of this section:

Provided that a report stating that no alteration is required to be made in respect of the part of the United Kingdom with which a Commission is concerned shall not be submitted less than six years from the date of the passing of the said Act, or the date of the submission of their last report under subsection (1) of this section, as the case may be.

(3) Any Boundary Commission may also from time to time submit to the Secretary of State reports with respect to the area comprised in any particular constituency or constituencies in the part of the United Kingdom with which they are concerned, showing the constituencies into which they recommend that that area should be divided in order to give effect to the rules set out in the said Second Schedule.

(4) Where a Commission intend to consider making a report under this Act, they shall, by notice in writing, inform the Secretary of State accordingly, and a copy of the said notice shall be published—

- (a) in a case where it was given by the Boundary Commission for England or the Boundary Commission for Wales, in the London Gazette; and

- (b) in a case where it was given by the Boundary Commission for Scotland, in the Edinburgh Gazette; and
- (c) in a case where it was given by the Boundary Commission for Northern Ireland, in the Belfast Gazette.

(5) As soon as may be after a Boundary Commission have submitted a report to the Secretary of State under this Act, he shall lay the report before Parliament together, except in a case where the report states that no alteration is required to be made in respect of the part of the United Kingdom with which the Commission are concerned, with the draft of an Order in Council for giving effect, whether with or without modifications, to the recommendations contained in the report.

General provisions as to reports and Orders in Council.

3.—(1) A report of a Boundary Commission under this Act showing the constituencies into which they recommend that any area should be divided shall state, as respects each constituency, the name by which they recommend that it should be known, and whether they recommend that it should be a county constituency or a borough constituency.

(2) The draft of any Order in Council laid before Parliament by the Secretary of State under this Act for giving effect, whether with or without modifications, to the recommendations contained in the report of a Boundary Commission may make provision—

- (a) for any matters which appear to him to be incidental thereto or consequential thereon; and
- (b) in particular, where the draft makes any change affecting constituencies in the administrative county of London, for any modification of subsection (1) of section fifty-nine of the Representation of the People Act, 1948, (which relates to the electoral divisions and the number of councillors for L.C.C. elections).

(3) Where any such draft gives effect to any such recommendations with modifications, the Secretary of State shall lay before Parliament together with the draft a statement of the reasons for the modifications.

(4) If any such draft is approved by resolution of each House of Parliament, the Secretary of State shall submit it to His Majesty in Council.

(5) If a motion for the approval of any such draft is rejected by either House of Parliament or withdrawn by leave of the House, the Secretary of State may amend the draft and lay the amended draft before Parliament, and if the draft as so amended is approved by resolution of each House of Parliament, the Secretary of State shall submit it to His Majesty in Council.

(6) Where the draft of an Order in Council is submitted to His Majesty in Council under this Act, His Majesty in Council

may make an Order in terms of the draft which shall come into force on such date as may be specified therein and shall have effect notwithstanding anything in any enactment:

Provided that the coming into force of any such Order shall not affect any parliamentary election until a proclamation is issued by His Majesty summoning a new Parliament, or affect the constitution of the House of Commons until the dissolution of the Parliament then in being.

(7) The validity of any Order in Council purporting to be made under this Act and reciting that a draft thereof has been approved by resolution of each House of Parliament shall not be called in question in any legal proceedings whatsoever.

4. In this Act, and, except where the context otherwise requires, in any other Act passed after the Representation of the People Act, 1948, the expression "constituency" means an area having separate representation in the House of Commons.

Meaning of constituency in this Act and future Acts.

5.—(1) The constituencies for the time being established by the Representation of the People Act, 1948, and any Order in Council under this Act shall take the place of parliamentary counties and boroughs.

Amendments of former Acts consequential on disappearance of parliamentary counties and boroughs.

(2) Subject to the next following subsection—

- (a) any reference in any former Act to parliamentary counties and boroughs shall be construed as a reference to constituencies;
- (b) references in any former Act to a parliamentary county shall be construed as references to a county constituency, and those to a parliamentary borough as references to a borough constituency, and references to a county election or a borough election shall be construed accordingly;
- (c) references in any former Act to a district of boroughs or to a district borough shall have effect in relation only to Scotland and shall (subject to any Order in Council under this Act) be taken as referring to the following constituencies, namely, Dunfermline burghs, Kirkcaldy burghs and Stirling and Falkirk burghs.

(3) Any reference in any former Act to the authority having power to divide a county or borough into polling districts or to appoint polling places for a county or a borough for the purposes of parliamentary elections shall, where the context is such as to show that the last foregoing subsection ought not to apply, be taken as a reference to the county council or the borough council, as the case may be.

(4) The provisions of subsections (2) and (3) of this section shall apply to a reference to any of the matters mentioned therein,

whatever the terms used in that reference ; but those provisions may be excluded in whole or in part by an order of the Secretary of State in any particular case where they appear to him to be inappropriate.

(5) The power conferred by this section to make an order shall be exercisable by statutory instrument, and any such instrument shall be subject to annulment by resolution of either House of Parliament.

(6) In this section the expression "former Act" means an Act passed before the Representation of the People Act, 1948.

Application
to Scotland.

6. In the application of this Act to Scotland, for any reference to a borough there shall be substituted a reference to a burgh, and for any reference to a borough constituency whether in this Act or in any amendment made by this Act in any other Act there shall be substituted a reference to a burgh constituency.

Saving for
Northern
Ireland.

7. Save as provided by paragraph 7 of Part I of the First Schedule to this Act, nothing in this Act shall affect the law relating to the Parliament of Northern Ireland.

Repeal and
savings.

8.—(1) The enactments set out in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule :

Provided that without prejudice to the provisions of the Interpretation Act, 1889, this subsection shall have effect subject to the following provisions of this section.

(2) Nothing in this repeal shall affect any Order in Council made, or any thing whatsoever done, under any enactment repealed by, and re-enacted in, this Act and every such Order in Council or thing and also any order of a Secretary of State under sub-paragraph (1) of paragraph 8 of Part I of the Tenth Schedule to the Representation of the People Act, 1948, shall, so far as it could have been made or done under this Act, have effect as if made or done under the corresponding provision of this Act.

(3) Nothing in this repeal shall affect the constitution of the Boundary Commissions established before the commencement of this Act.

(4) Nothing in this repeal shall affect the terms and conditions on and subject to which any person held office immediately before the commencement of this Act.

(5) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or to the corresponding enactment in this Act.

9.—(1) This Act may be cited as the House of Commons Short title,
(Redistribution of Seats) Act, 1949, and shall be included among citation and
the Acts which may be cited as the Representation of the People commencement.
Acts.

(2) This Act shall come into force on such day, not before the coming into force of the redistribution of seats effected by subsection (1) of section one of the Representation of the People Act, 1948, as the Secretary of State may by statutory instrument appoint.

SCHEDULES

Section 1, 7.

FIRST SCHEDULE

CONSTITUTION, OFFICERS, EXPENSES AND PROCEDURE OF BOUNDARY COMMISSIONS

PART I

Constitution

1. The Speaker of the House of Commons shall be the chairman of each of the four Commissions.

2. The Commission for England shall consist of the chairman, the Registrar General of Births, Deaths and Marriages in England, the Director General of Ordnance Survey and two other members of whom one shall be appointed by the Secretary of State and the other by the Minister of Health.

3. The Commission for Scotland shall consist of the chairman, the Registrar General of Births, Deaths and Marriages in Scotland, the Director General of Ordnance Survey and two other members appointed by the Secretary of State.

4. The Commission for Wales shall consist of the chairman, the Registrar General of Births, Deaths and Marriages in England, the Director General of Ordnance Survey and two other members of whom one shall be appointed by the Secretary of State and the other by the Minister of Health.

5. The Commission for Northern Ireland shall consist of the chairman, the Registrar General of Births, Deaths and Marriages for Northern Ireland, the Commissioner of Valuation for Northern Ireland and two other members appointed by the Secretary of State.

6. One of the members of each Commission, to be nominated by the chairman, shall be deputy chairman of the Commission.

7. A member of the House of Commons, or of either House of the Parliament of Northern Ireland, shall be disqualified for being appointed a member of any of the Commissions by the Secretary of State or Minister of Health, and a member of a Commission so appointed shall be disqualified for being a member of the Commission on his becoming a member of any such House.

8. A member of any Commission appointed by the Secretary of State or Minister of Health shall hold his appointment for such term and on such conditions as may be determined before his appointment by the Secretary of State or Minister of Health, as the case may be.

1ST SCH.

—cont.

PART II

Officers and expenses

1.—(1) The Secretary of State may, at the request of any Commission, appoint one or more assistant Commissioners to inquire into, and report to the Commission upon, such matters as the Commission think fit.

(2) Any such assistant Commissioner shall be appointed either for a certain term or for the purposes of a particular inquiry, and on such conditions as to remuneration and otherwise as may be determined before his appointment by the Secretary of State with the approval of the Treasury.

2. The Secretary of State shall appoint a secretary to each of the Commissions, and may appoint such other officers of any Commission as he may determine with the approval of the Treasury, and the term and conditions of any such appointment shall be such as may be so determined.

3. The expenses of each Commission, including the travelling and other expenses of the members thereof, and the remuneration and expenses of the assistant Commissioners, secretary and other officers, shall be defrayed out of moneys provided by Parliament.

PART III

Procedure

1. A Commission shall have power to act notwithstanding a vacancy among the members thereof, and at any meeting of a Commission two, or such greater number as the Commission may determine, shall be the quorum.

2. For the purpose of considering any matter of common concern, the Commissions, or any two or three of them, may hold joint meetings.

3. Where a Commission have provisionally determined to make recommendations affecting any constituency, they shall publish in at least one newspaper circulating in the constituency a notice stating—

- (a) the effect of the proposed recommendations and (except in a case where they propose to recommend that no alteration be made in respect of the constituency) that a copy of the recommendations is open to inspection at a specified place within the constituency ; and
- (b) that representations with respect to the proposed recommendations may be made to the Commission within one month after the publication of the notice ;

and the Commission shall take into consideration any representations duly made in accordance with any such notice.

4. A Commission may, if they think fit, cause a local inquiry to be held in respect of any constituency or constituencies.

5.—(1) Subsections (2) and (3) of section two hundred and ninety of the Local Government Act, 1933, (which relate to the attendance of witnesses at inquiries) shall apply in relation to any local inquiry which the Commission for England or the Commission for Wales may cause to be held in pursuance of this Act.

1ST SCH.
—cont.

(2) In relation to any local inquiry which the Commission for Scotland may cause to be held as aforesaid, the said subsections (2) and (3) shall apply in like manner as if that Act applied to Scotland, with the substitution however of references to an order for references to a summons.

(3) In relation to any local inquiry which the Commission for Northern Ireland may cause to be held as aforesaid, sections nineteen and twenty of the Poor Relief (Ireland) (No. 2) Act, 1847, shall apply.

6. Subject to the foregoing provisions of this Schedule, each of the Commissions shall have power to regulate their own procedure.

7. Every document purporting to be an instrument made or issued by a Commission and to be signed by the secretary or any person authorised to act in that behalf, shall be received in evidence and shall, until the contrary is proved, be deemed to be an instrument made or issued by the Commission.

SECOND SCHEDULE

Section 2

RULES FOR REDISTRIBUTION OF SEATS

1. The number of constituencies in the several parts of the United Kingdom set out in the first column of the following table shall be as stated respectively in the second column of that table—

<i>Part of the United Kingdom.</i>	<i>No. of Constituencies.</i>
Great Britain ...	Not substantially greater or less than 613.
Scotland ...	Not less than 71.
Wales ...	Not less than 35.
Northern Ireland ...	12.

2. Every constituency shall return a single member.

3. There shall continue to be a constituency which shall include the whole of the City of London and the name of which shall refer to the City of London.

4.—(1) So far as is practicable having regard to the foregoing rules—

(a) in England and Wales,—

(i) no county or any part thereof shall be included in a constituency which includes the whole or part of any other county or the whole or part of a county borough or metropolitan borough ;

(ii) no county borough or any part thereof shall be included in a constituency which includes the whole or part of any other county borough or the whole or part of a metropolitan borough ;

(iii) no metropolitan borough or any part thereof shall be included in a constituency which includes the whole or part of any other metropolitan borough ;

(iv) no county district shall be included partly in one constituency and partly in another ;

2ND SCH.
—cont.

(b) in Scotland, no burgh other than a county of a city shall be included partly in one constituency and partly in another ;

(c) in Northern Ireland, no county district shall be included partly in one constituency and partly in another.

(2) In paragraph (1) of this rule the following expressions have the following meanings, that is to say :—

“ county ” means an administrative county other than the county of London ;

“ county borough ” has the same meaning as in the Local Government Act, 1933 ;

“ county district ” has, in sub-paragraph (a), the same meaning as in the Local Government Act, 1933, and, in sub-paragraph (c), the same meaning as in the Local Government (Ireland) Act, 1898.

5. The electorate of any constituency shall be as near the electoral quota as is practicable having regard to the foregoing rules ; and a Boundary Commission may depart from the strict application of the last foregoing rule if it appears to them that a departure is desirable to avoid an excessive disparity between the electorate of any constituency and the electoral quota, or between the electorate thereof and that of neighbouring constituencies in the part of the United Kingdom with which they are concerned.

6. A Boundary Commission may depart from the strict application of the last two foregoing rules if special geographical considerations, including in particular the size, shape and accessibility of a constituency, appear to them to render a departure desirable.

7. For the purpose of these rules—

(a) the expression “ electoral quota ” means—

(i) in the application of these rules to a constituency in Great Britain, a number obtained by dividing the electorate for Great Britain by the number of constituencies in Great Britain existing on the enumeration date ;

(ii) in the application of these rules to a constituency in Northern Ireland, a number obtained by dividing the electorate for Northern Ireland by the number of constituencies in Northern Ireland existing on the enumeration date ;

(b) the expression “ electorate ” means—

(i) in relation to a constituency, the number of persons whose names appear on the register of parliamentary electors in force on the enumeration date under the Representation of the People Acts for the constituency ;

(ii) in relation to Great Britain or Northern Ireland, the aggregate electorate as hereinbefore defined of all the constituencies therein ;

- (c) the expression "enumeration date" means, in relation to any report of a Boundary Commission under this Act, the date on which the notice with respect to that report is published in accordance with section two of this Act.

2ND SCH.
—cont.

THIRD SCHEDULE

Section 8.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
7 & 8 Geo. 6. c. 41.	The House of Commons (Redistribution of Seats) Act, 1944.	The whole Act.
8 & 9 Geo. 6. c. 5.	The Representation of the People Act, 1945.	Section thirty-three.
10 & 11 Geo. 6. c. 10.	The House of Commons (Redistribution of Seats) Act, 1947.	The whole Act.
11 & 12 Geo. 6. c. 65.	The Representation of the People Act, 1948.	Section three; subsection (3) of section fifty-nine; in section eighty-one the words "and the House of Commons (Redistribution of Seats) Act, 1947"; the Second Schedule; and in the Tenth Schedule, in paragraph 1 of Part I, in sub-paragraph (1) the words from the beginning to "and boroughs" and sub-paragraphs (2) and (3).

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Poor Relief (Ireland) (No. 2) Act, 1847	10 & 11 Vict. c. 90.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Local Government (Ireland) Act, 1898	61 & 62 Vict. c. 37.
Local Government Act, 1933... ..	23 & 24 Geo. 5. c. 51.
House of Commons (Redistribution of Seats) Act, 1944	7 & 8 Geo. 6. c. 41.
Representation of the People Act, 1945	8 & 9 Geo. 6. c. 5.
House of Commons (Redistribution of Seats) Act, 1947	10 & 11 Geo. 6. c. 10.
Representation of the People Act, 1948	11 & 12 Geo. 6. c. 65.